

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 522, As Amended in the Senate

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO UNMANNED AIRCRAFT SYSTEMS; AMENDING CHAPTER 2, TITLE 20, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 20-251, IDAHO CODE, TO DEFINE TERMS AND TO ESTABLISH PROVISIONS REGARDING UNMANNED AIRCRAFT SYSTEMS NEAR DEPARTMENT OF CORRECTION FACILITIES; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 2, Title 20, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 20-251, Idaho Code, and to read as follows:

20-251. UNMANNED AIRCRAFT SYSTEMS NEAR DEPARTMENT OF CORRECTION FACILITIES. (1) As used in this section:

(a) "Correctional facility" means a facility incarcerating state inmates under the control of the Idaho department of correction.

(b) "Mitigation measures" means actions, such as jamming, that are taken to cause electronic interference to neutralize, intercept, disable, or disrupt an unmanned aircraft system in order to prevent illegal or harmful activity.

(c) "Nefarious manner" means a manner in which an unmanned aircraft system is used for an illegal, dangerous, or harmful purpose. Such purpose may include but is not limited to spying, smuggling contraband, facilitating criminal activity, or posing a direct threat to public safety or security of a correctional facility.

(d) "Restricted airspace" means the airspace from the surface to a height of four hundred (400) feet above ground level within the defined perimeter of a correctional facility.

(2) The department of correction or a law enforcement officer or agency may take reasonable and necessary mitigation measures against a threat posed by an unmanned aircraft system operating in a nefarious manner within restricted airspace within this state as long as it does not conflict with federal law.

(3) The department of correction or a law enforcement officer or agency may act pursuant to subsection (2) of this section only if there is reasonable suspicion that the unmanned aircraft system is operating in a nefarious manner within the restricted airspace of any department of correction facility where prisoners are held. The department of correction or a law enforcement officer or agency shall not be liable for any loss of or damage to an unmanned aircraft system due to mitigation measures taken pursuant to this section. The department of correction shall post notices on roads near correctional facilities that the area is a "Drone No Fly Zone."

(4) The use of an unmanned aircraft system within the restricted airspace of a correctional facility shall be unlawful. Whoever commits the

1 crime of unlawful use of an unmanned aircraft system within the restricted
2 airspace of a correctional facility shall be guilty of a misdemeanor and
3 shall be fined no more than one thousand dollars (\$1,000), imprisoned in the
4 county jail for no more than six (6) months, or by both such fine and impris-
5 onment. In addition to the sentence imposed pursuant to this subsection,
6 the court may order the forfeiture of the unmanned aircraft system used in
7 connection with the unlawful act.

8 (5) It shall be the responsibility of unmanned aircraft system opera-
9 tors to be familiar with all airspace restrictions and the location of cor-
10 rectional facilities and all other restricted airspace when operating un-
11 manned aircraft systems. Lack of knowledge that the prohibited act occurred
12 within the restricted airspace of the correctional facility shall not be a
13 defense.

14 SECTION 2. An emergency existing therefor, which emergency is hereby
15 declared to exist, this act shall be in full force and effect on and after
16 July 1, 2026.